

Stereo. H C J D A-38.  
**JUDGMENT SHEET**  
**IN THE LAHORE HIGH COURT, BAHAWALPUR**  
**BENCH, BAHAWALPUR**  
**JUDICIAL DEPARTMENT**

**W.P. No.3717 of 2019 / BWP**

**Mulazim Hussain**

**Versus**

**Govt. of the Punjab & others**

**J U D G M E N T**

Date of hearing: 07.04.2021.  
Petitioner by: Mr. Jamshaid Akhtar Khokhar, Advocate.  
Respondents by: Jam Abdul Maalik, A.A.G. along with  
Muhammad Laeeq, Assistant Accounts Officer,  
District Accounts Office, Bahawalpur.

**MUHAMMAD SAJID MEHMOOD SETHI, J.:** Through instant petition, petitioner has assailed Show Cause Notice (“SCN”) dated 02.04.2019, issued by respondent No.1 / Secretary, Primary & Secondary Healthcare Department, Govt. of the Punjab, Lahore, under Rule 1.8(a) of the Punjab Civil Services Pension Rules, confronting various allegations mentioned therein.

2. Learned counsel for petitioner submits that there is no justification for issuance of impugned SCN under Rule 1.8 of the Rules *ibid* as petitioner stood retired long ago on 04.02.2016. He further submits that no proceedings were initiated against petitioner during service and even after the lapse of one year after retirement, as prescribed under the statute i.e. Punjab Employees Efficiency, Discipline and Accountability Act (*PEEDA Act*), 2006. He further submits that even otherwise, petitioner was neither convicted nor held guilty of grave misconduct either during or after completion of his service. In the end, he submits that impugned SCN is not sustainable in the eye of law. In support, he has placed reliance on Province of the Punjab through Secretary, Livestock and Dairy

Development Department, Punjab, Lahore and others v. Syed Munir Hussain Shah (1998 SCMR 1326), Secretary, Education (Schools), Government of the Punjab, Lahore v. Muhammad Akhtar, Ex Headmaster (2006 SCMR 600), Divisional Forest Officer and another v. Gulab Din [2007 PLC (C.S.) 297], Chief Secretary, Government of SINDH and another v. Umar-ud-Din [2007 PLC (C.S.) 662], Muhammad Masood Joya v. Government of Punjab and others (PLJ 2000 Lahore 244), Mst. Shahnaz Bano v. Chairman WAPDA and 2 others [2017 PLC (C.S.) 643], Malik Ehsan-ul-Haq v. Government of the Punjab through Chief Secretary and 3 others [1994 PLC (C.S.) 454] and Syed Munir Hussain Shah v. Secretary, Livestock Dairy and Development Department, Government of the Punjab and 2 others [1995 PLC (C.S.) 943].

3. Conversely, learned Law Officer defends the issuance of impugned SCN and submits that Rule 1.8 (a) *ibid* empowers the Government to initiate inquiry against an employee during or after completion of his service. In support of his submission, he has relied upon The Government of N.W.F.P. through the Secretary to the Government of N.W.F.P Communications and Works Departments, Peshawar v. Mohammad Said Khan and another (PLD 1973 Supreme Court 514).

4. Arguments heard. Available record perused.

5. The primary legal question involved in this case is whether after lapse of more than one year from date of petitioner's retirement, SCN / *de novo* inquiry could be initiated against him and what would be the effect of Section 21 of PEEDA Act. For ready reference, the relevant Sections 1(4)(iii) and 21 of the PEEDA Act, are reproduced hereunder:-

**"1. Short title, extent, commencement and application.**  
*This may be called the Punjab Employees, Efficiency, Discipline and Accountability Act, 2006.*

(4) It shall apply to –

(iii) retired employees of government and corporation service; provided that proceedings under this Act are initiated against them during their service or within one year of their retirement.

21. **Proceedings under this Act.**

*Subject to this Act, all proceedings initiated against the employees having retired or in service, shall be governed by the provisions of this Act and the rules made thereunder: Provided that in case of retired employee, the proceedings so initiated against him shall be finalized not later than two years of his retirement.*

*(2) The competent authority may, by an order in writing, impose one or more penalties specified in clause (c) of section 4, if the charge or charges are proved against the retired employee.”*

6. The afore-cited provisions evince that proceedings under PEEDA may be initiated against a retired employee of government provided the same are: (i) initiated against him during his service or within one year of his retirement; and (ii) finalized not later than two years of his retirement. The time lag inserted in the above referred provision of law is manifestly intended to safeguard the interest of the retired employees so that the sword of damocles should not hang upon them for an indefinite period. In the instant case, petitioner stood retired from service on 04.02.2016 and SCN was issued by respondent No.1 on 02.04.2019, after a lapse of almost 03-years & 02-months from retirement, clearly much beyond the period of one year, thus violation of Section 1(4)(iii) of PEEDA Act, is manifest.

7. As regards the argument of learned Law Officer relating to Rule 1.8 of the Punjab Civil Services Pension Rules, it is clearly mentioned in the proviso to Rule 1.8(b) that no such departmental proceedings shall be instituted after more than a year from the date of retirement of the government pensioner. Reliance is placed upon Province of Punjab through Conservator of Forest, Faisalabad and

others v. Javed Iqbal (2021 SCMR 328), Mirza Muhammad Iqbal v. Additional Secretary (General), Government of the Punjab Education Department, (School Wing), Lahore and another [2007 PLC (C.S.) 432], Ehsan-ul-Haque v. Executive Engineer, Ahmadpur Canal Division Ahmadpur East and 2 others [2011 PLC (C.S.) 1523] and Muhammad Siddique v. Divisional Forest Officer, Okara [2014 PLC (C.S.) 253].

In Javed Iqbal's case supra, the Hon'ble Supreme Court has observed as under:-

"13. The legislative intent and the purposive interpretation of the Act read with the supportive material discussed above, it is clear that the finalization of the departmental proceedings not later than two years of the retirement of the employee under the proviso to section 21 of the Act is a mandatory provision and any proceedings after the said statutory period shall stand abated and any orders passed after the efflux of the above time period are void and have no legal effect.

14. In the instant cases, the departmental proceedings against the respondent have been finalized after a period of two years of his retirement, the departmental proceedings, therefore, have no legal consequence and the subsequent departmental orders are void and have no legal effect. For this reason we take no exception to the impugned judgments and are of the view that they do not warrant any interference. Leave is, therefore, declined and these petitions are dismissed. For future, the Government must ensure that cases of retired employees are fast tracked so that they are concluded within the aforesaid statutory timeframe allowing the retired employees to enjoy their retired life and the Government to save unnecessary expense and time in pursuing matters against retired employees."

8. There is no second opinion that the rule of law requires that things should be done as they are required to be done or not at all. Every person in execution of law should follow strictly the law as laid down and should not exceed the limit of law for any reasons whatsoever. Reliance is placed upon Syed Raza Mehdi Baqari v. Province of Punjab through Secretary, LG&CD Department and 2 others [2016 PLC (C.S.) 1046]. The case law relied upon by

learned Law Officer is quite distinguishable, thus, not applicable to the facts and circumstances of this case.

9. In view of the above, this petition is **allowed**. Consequently, impugned SCN dated 02.04.2019, issued by respondent No.1, is declared to be illegal and without lawful authority.

**(Muhammad Sajid Mehmood Sethi)**  
**Judge**

\*A.H.S.\*